

**IN THE COURT OF COMMON PLEAS
KNOX COUNTY, OHIO**

State of Ohio, ex rel. Dave Yost,
Attorney General,

Plaintiff,

v.

The Landings Property Association, Inc., *et al.*,

Defendants.

Case No. 20IN06-0149

VISITING JUDGE
JAMES L. KIMBLER

Mullins Bros., Ltd.,

Defendant/Third-Party
Plaintiff,

v.

Carol A. Didinger, Trustee, *et al.*,

Third-Party Defendants.

**THE LONG DEFENDANTS' MOTION FOR DEFAULT JUDGMENT
AGAINST MULLINS BROS. LTD.**

Pursuant to Civ. R. 55(A), the Long Defendants¹ move for an order granting them judgment by default on their Cross-claim against Mullins Bros, Ltd., on the grounds that defendant Mullins

¹ Angela J. Arumpanayil, Trustee; Deborah Banda, Enon Banda; Cary S. Beck; Erika D. Beck; Andrea Belcher; Kenneth Belcher; Robert Boyd; Janet Boyd; Eric Lee Brown; Revecca M. Buckwalter; Aaron Burak; Allison Burak; Anita C. Byrd, Trustee; Edwin L. Cable; Sandra M. Cable; Chu-Hsiang Chen; Yong-Hwa Chen; Matthew A. Cherup; Karen L. Cherup; Joseph R. Christopher; Cheryl K. Christopher; Kelly L. Clark; Christopher A. Clark; Marcell Codispoti; Peggy Codispoti; Paula C. Compton-Solie; Edward L. Cosby; Janice Cosby, Trustees; Derk D. Demaree; Anita M. Demaree; Joseph M. Depolo; Robin L. Depolo; Carol A. Didinger, Trustee; Mark Driftmyer, Trustee; Deborah M. Forsythe; Linda L. Fritz; Marilou M. Fritz; Al A. Balaa; Peggy A. Gaddis; Donald L. Garvic; Andreas Giakoumas; Ypatia Giakoumas; James Goodrich; Diane Goodrich; Gary Gray; Carolyn Gray; Adrienne D. Harris; Jeffry D. Harris; Bharon Hoag; Heather Hoag; Shane Alan Kinton, Trustee; Laurie Ann Kirkpatrick, Trustee; Robert S. Lebold; Jennifer Lebold; Richard Littleton; Vicki Littleton; Mark A. Long; Denise A. Long; Jesse L. Marlow; Jane C. Marlow; Hewlet McFarlane; Angela N. Merryman; Scott T. Miglin; Susan D. Miglin; Mount Vernon Nazarene University; Stephen D. Mullendore; Jeanne C. Mullendore, Trustees; Chetan I. Patel; Chetna C. Patel; Douglas P. Peterson; Diana L. Peterson; Philip B. Petrie; Priscilla J. Petrie; Randolph B. Plasse; Tina M. Plasse; Bradley Porter; Tonya Porter; Brian Przeracki; Deborah Reynolds; Kenneth Rhoades; Mary Rhoades; Ralph Shafer; Benjamin Snow; Mary Margaret Snow; Matthew Snow; Megan Snow; Phil Stopher; Ellen Stopher; Jeffrey Strickland; Rachel Strickland; Nancy Stull; Rodger Stull; Chad Taylor, Mark S. Tuel; Crystal O. Tuel; Michael Ulrey; Rosemary Ulrey; Lawrence Vail; Nancy Vail; Alexander Varughese; Marcia J. Varughese; Brad Whitaker; Leslie Whitaker; Andrea White; Brian Williams; Dianne L. Williams; James Williams; Margaret B. Williams; and Timothy J. Williams.

Bros., Ltd. has failed to move, plead, or otherwise respond to the Long Defendants' Cross-claim against it.

The grounds for this motion for set forth with more particularly in the following Memorandum in Support of Motion.

Respectfully submitted,

/s/ Stephen E. Chappellear

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MEMORANDUM IN SUPPORT OF MOTION

I. Facts

On June 2, 2023, the Long Defendants served their Cross-claims. (See Docket.) The Long Defendants asserted a five count Cross-claim against Mullins Bros., Ltd., including claims for declaratory judgment, breach of contract, and indemnity or contribution. (See Docket.)

On June 9, 2023, the Long Defendants served their Amended Cross-claims. (See Docket.)

Defendant Mullins Bros., Ltd. was required to move, plead, or otherwise respond to the Cross-claim against it by July 7, 2023, but has failed to do so. (See Docket.)

II. Law and Argument

Civ.R.12(A)(2) requires a defendant to serve its answer to a Cross-claim within twenty-eight days after service upon it. When a defendant fails to answer a properly served Cross-claim in accordance with Civ.R.12(A)(2), the cross-claiming defendant is entitled to a default judgment pursuant to Civ.R.55(A), which provides in relevant part:

Entry of Judgment. When a party against whom a judgment for affirmative relief is sought has failed to plead or otherwise defend as provided by these rules, the party entitled to a judgment by default shall apply in writing or orally to the court therefor;

The provisions of Civ.R.55(A) apply to Cross-claims, pursuant to Civ.R.55(C).

As reflected by the Court's records, defendant Mullins Bros., Ltd. was required to move, plead, or otherwise respond to the Cross-claim asserted against it by the Long Defendants by July 7, 2023, but has failed to do so.

Therefore, the Long Defendants are entitled to judgment by default against Mullins Bros., Ltd.

III. Conclusion

For all the foregoing reasons, the Long Defendants respectfully request that their motion for default judgment be granted.

Respectfully submitted,

/s/ Stephen E. Chappellear

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CERTIFICATE OF SERVICE

I hereby certify that a true and accurate copy of the foregoing was served upon the following via electronic or regular mail this 25th day of July, 2023.

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